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CORRUPTION

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Are we progressing towards Good Governance?

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DEVANESAN NESIAH ([HTTPS://WEB.ARCHIVE.ORG/WEB/20251228104446/HTTPS://GROUNDVIEWS.ORG/AUTHOR/DR-NESIAH/](https://web.archive.org/web/20251228104446/https://groundviews.org/author/dr-nesiah/))
on 11/20/2015



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I wish I could answer this question with an unqualified yes, but I cannot. There has been significant progress on several issues, but also stagnation and even regression on several others. The gap between our hopeful expectations and the emerging reality is widening. Like perhaps a majority of our population, I rated the administration that was ousted in January this year to have been not only the worst since we attained

independence, but also so firmly entrenched in authority that it could not be dislodged in the foreseeable future. The smooth and peaceful ouster of that administration, including its top leaders, seemed to be miraculous. In my expectation, and perhaps that of most others, the new administration, once established through reelection in August, would take us unimpeded towards good governance and reconciliation.

In fact progress has been disappointingly slow and uneven. There has been some credible progress in respect of some aspects of national reconciliation. But what has been achieved on the ground on some very urgent issues central to national reconciliation is minimal (e.g. the release of prisoners held without trial for many years with no charges framed against them). So too on the issue of greater devolution to the provinces, and that of missing persons.

In the last few months, the record with respect to corruption is also mixed and very much short of expectations. It won't do to merely say that no corrective action can be taken or punishment imposed till charges are proved. Have credible investigations of major allegations of fraud or nepotism or other irregularities been undertaken and assigned to agencies that are widely accepted as independent? Until recently there has been a long established tradition that the Public Accounts Committee (PAC) should be multi party and headed by a widely respected Member of Parliament from the opposition. This not only gives credibility to the PAC but also discourages baseless allegations being made by the opposition. This principle should have been extended to all major allegations of which there is an increasing number. We do not see this happening.

Many of those who make damaging allegations may not be aware of all the facts; nor am I. But there are enough facts sufficiently well known to rouse suspicion of vices such as financial corruption, nepotism, conflict of interest and a false sense of entitlement, all of which had been defining features of the previous administration. There is a lack of cohesion and clarity among our leaders that cause people to believe in various conspiracy theories. Even those leaders not under suspicion seem to be weak and unwilling to rock the boat. There appears to be no dominant figure among those of the current leaders not even indirectly tainted by association with the failings listed above to name and shame those guilty. Perhaps Sobitha Thero had the potential to be that icon, but he is no more.

As set out earlier, I lack full information, but the Central Bank Bond issue involving the Governor and his son in law appears to be damaging. The independence and the credibility of the Central Bank is vital. The Committee that inquired into this issue lacks credibility. Also damaging is the Avant Garde issue which involves allegations of fraud, subversion of national security and conflict of interest. This issue involves both the present and previous administrations. Thirdly, violence against defenseless students by Police and Service personnel as illustrated by the very public assault of those students demonstrating is degrading. The Police claimed that they used "minimum force". If that was "minimum" force what is normal force? Disciplinary action against the guilty Policemen and those who led or instigated them is called for.

There are many other charges that need to be credibly investigated. Tragically, some of these charges implicate widely respected persons previously thought to be incorruptible. Moreover, many with shamefully corrupt reputations seem to have successfully "jumped the fence" from the former administration to the present one and seem to be happily continuing their corrupt activities.

I still believe that the present government is vastly superior to the earlier one but the gap is shrinking. If the trend indicated above continues, people will begin to doubt whether in fact there has been a transformation. This would be a disaster. Our new leaders need to quickly take account of the growing sense of disillusionment and effect strong corrective measures. Time is running out.

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